

22STCV23823 22STCV23823

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Case Number: 22STCV23823 Hearing Date: September 14, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

14, 2026 TRIAL DATE: September 28, 2026

CASE: Monique Cooper, et al. v. B. Ruth Allen, et al.

CASE NO.: 22STCV23823

PLAINTIFFS'

MOTION TO COMPEL DEPOSITION OF DEFENDANT B. RUTH

ALLEN

AND FOR MONETARY SANCTIONS; REOPEN AND/OR EXTEND THE DISCOVERY CUTOFF FOR
LIMITED PURPOSE OF TAKING THE DEPOSITION

MOVING

PARTY: Plaintiffs Monique Cooper, et al.

RESPONDING

PARTY: Defendant B. Ruth Allen

I. INTRODUCTION

Plaintiffs Monique Cooper and Jayon Levon (collectively,
"Plaintiffs") bring this habitability action arising from their tenancy at 5416

3rd Ave, Los Angeles, California (the "Property"). The Property was owned by defendants B. Ruth Allen ("Allen" or "Defendant"), B. Ruth Allen Trust, Charles Clark, and Leonard F. Delpit at the relevant time period.

On August 26, 2026, the parties stipulated to extend the discovery deadline to 15 days before the trial.

Accordingly, the deadline to complete discovery is September 14, 2026.

On September 1, 2026, Plaintiffs filed this motion to compel Allen to appear for deposition and to reopen or extend discovery for the limited purpose of deposing Allen.

Plaintiffs request sanctions against Allen.

On September 8, 2026, Allen filed an opposition.

At the time of this writing, no reply had been filed.

II. JUDICIAL NOTICE

Defendant requests judicial notice of her filings on August 31, 2026. The unopposed request for judicial notice is GRANTED. The court takes judicial notice of those filings but not the truth of the matters asserted therein.

III. LEGAL STANDARD

Any party may obtain discovery by taking in California the oral deposition of any person. (Code Civ. Proc., § 2025.010.) "If, after service of a deposition notice, a party to the action...without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).) ~~~~~

Monetary Sanctions

Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc., § 2023.010.)

If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction.

“If a motion under [Code of Civil Procedure section 2025.450] subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

III. DISCUSSION

The court must address the following issues: (1) whether the court should compel Allen to appear for deposition; (2) whether good cause exists to extend discovery for that limited purpose; (3) whether good cause exists to delay the taking of Allen's deposition because of Allen's claimed cognitive impairments and related medical testing of the same; (4) whether the deposition may proceed subject to certain modifications; and (5) whether sanctions should be imposed against Allen.

After reviewing the briefing, the court will order Defendant to appear for deposition within 30 days of this order and allow her son, Marcus Allen, to accompany Defendant at the deposition, but not to testify on behalf of or otherwise “coach” Defendant.[1] Defendant is a party to this action. As such, Plaintiffs are entitled to take her deposition. Defendant establishes to the satisfaction of the court that she has cognitive impairments which warrant modifications to the deposition—specifically, support from her son, Marcus Allen. Defendant, however, does not establish that she cannot sit for deposition and provide testimony on the noticed topics. For the foregoing reasons, the court also finds good cause exists to extend the discovery deadline for the limited purpose of completing Defendant’s deposition and to continue the trial date.

As to Plaintiffs’ request for sanctions, the request is not well taken. This case was filed over four years ago. Yet, Plaintiffs waited until July 2026 to begin discussing the taking of Defendant’s deposition. (See Johnson Decl., ¶ 3.) Plaintiffs have not demonstrated diligence in the prosecution of this action. The court issues the order compelling Defendant’s deposition, extending discovery, and continuing the trial date despite Plaintiffs lack of diligence.

IV. CONCLUSION

Based on the foregoing, the motion is GRANTED. The court makes the following orders:

1. Defendant B. Ruth Allen is ordered to appear for deposition within 15 days of this order.
2. Marcus Allen may accompany Defendant at the deposition, if the deposition is to be taken in-person. If the deposition is to be taken remotely, Marcus Allen may not attend. Defendant’s other requested relief is Denied.
3. Discovery is extended for the limited purpose of taking Defendant’s deposition and any

related matters.

4. The court anticipates continuing the FSC to September 28, 2026 and trial to October 12, 2026. Discovery dates and FSC filing requirements are not reset or extended pursuant to these new dates.

5. Plaintiffs' request for monetary sanctions is Denied.

Plaintiffs to give notice, unless waived.

Dated: September 14,
2026

Brock T. Hammond

Judge of the Superior Court

[1] The court notes that Defendant should have filed a separate motion for protective order requesting this, and other relief.